

For the prayer for subpœna see form under the 77th Order. The only difference, in substance, between the above form, and the form given in the English Orders of April, 1850, is, that the above seeks relief against both real and personal assets, the English form being confined to the latter.

Compared with
English form.

By a legatee, under the will of any deceased person, seeking payment or delivery of his legacy out of the testator's personal assets.

2.
Bill for a
legacy.

IN CHANCERY.

To the Honourable, &c.

Humbly complaining, &c., your orator, &c., that he is a legatee to the amount of £——, under the will, dated the —— day of ——, of ——, late of ——, deceased, who died on the —— day of ——, and that C. D., the defendant hereinafter named, is the executor of the said ——, and that the said legacy of £——, together with interest thereon from the —— day of ——, (*the day mentioned in the will for the payment of the legacy, or the expiration of twelve calendar months from the testator's death*), is now due and owing to him the said A. B., (*or unpaid or unsatisfied*) (*or unappropriated or unsecured*). To the end therefore that the said A. B. may be paid (*or satisfied*) the said legacy and interest, (*or may have the said legacy and interest appropriated and secured*), and in default thereof may have the personal estate of the said —— administered in this Court on behalf of himself and all others the legatees of the said ——, and for that purpose that all proper directions may be given and accounts taken.

(And for further relief (as in form 1) pray subpœna, &c.)

NOTE.—This form may be varied according to the circumstances of the case, where the legacy is an annuity or specific, or where the plaintiff is not the legatee, but has become entitled to or interested in the legacy, in which case the character in which the plaintiff claims is to be stated, as before mentioned.

For the form of prayer for further relief, see form under the 77th Order.

This form (2) follows the English form of claim, No. 2, excepting only as in the other cases, the difference arising from the latter being in the form of a "claim", and the above in the form of a bill—a difference which applies to the mere formal parts.

Compared with
English form.